

Under Code of Civil Procedure section 170.1, subdivision (a)(6)(A)(iii), such a relationship may lead a reasonable litigant to entertain doubt regarding the judge's ability to remain impartial.

In light of these disclosures and in accordance with applicable law, Judge Reyes recuses himself from presiding over any hearings in this case to preserve the integrity of the judicial process.

ORDER

NOW, THEREFORE, IT IS HEREBY ORDERED THAT:

1. The Honorable Benjamin T. Reyes II recuses himself from presiding over the above-captioned motion pursuant to Code of Civil Procedure section 170.3;
2. This motion is reassigned to the Honorable Leonard Marquez, Department 34, for all purposes;
3. This motion will be heard in Department 34 on August 3, 2026, at 9:00 a.m. The hearing previously scheduled for July 8, 2026, in Department 16 is vacated. No appearance is required for the vacated hearing date;
4. The parties shall receive notice of the new hearing date from the Court Clerk's Office; and
5. Moving party shall also give notice of the continuance to Plaintiff.

IT IS SO ORDERED.

12. 9:00 AM CASE NUMBER: C25-01821
CASE NAME: JAMES BIDWELL VS. DOROTHY GALLOWAY
HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL AS TO JAMES BIDWELL
FILED BY: BIDWELL, JAMES

TENTATIVE RULING:

Summary

Withdrawing Counsel Gunter Mihaescu, attorney for Plaintiff James Bidwell, filed a Motion to be Relieved as Counsel. Good cause appearing, the motion is **granted**. The Court further orders that this action be dismissed without prejudice as forth herein.

Background

In this action, Plaintiff James Bidwell alleges that on or about June 29, 2023, Defendant Dorothy Galloway requested Plaintiff's assistance with sanitation and cleaning, during which Plaintiff alleges he was exposed to Shigella bacterium, resulting in illness.

On May 15, 2026, Withdrawing Counsel filed a Motion to be Relieved as Counsel. Withdrawing Counsel supports the motion with a declaration stating there has been a breakdown in

communication rendering effective representation unreasonably difficult. Withdrawing Counsel further represented in open court on November 18, 2025 that he had lost contact with his client.

Analysis

California Rule of Court 3.1362 and Code of Civil Procedure section 284, subdivisions (1) and (2), set forth the standard and procedure for relief of counsel. The Code permits an attorney to withdraw "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Withdrawing Counsel has complied with these provisions, providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for withdrawal.

The Court finds good cause to grant the motion. The prejudice to Plaintiff is minimal given his lack of cooperation with counsel and failure to maintain contact. Because Plaintiff has failed to diligently prosecute this action and lacks counsel of record, dismissal is appropriate under Code of Civil Procedure section 581(b)(1).

Ruling

After reviewing the papers submitted and weighing the prejudice to both parties, the Court finds good cause to grant the Motion to be Relieved as Counsel. It is hereby ordered as follows:

1. The Motion to be Relieved as Counsel is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) filed on May 15, 2026. Withdrawal is effective immediately upon entry of this order.
3. Within 10 days of the date of this order, Withdrawing Counsel shall serve a copy of the executed Order (Form MC-053), attaching a copy of this ruling, on Plaintiff by mail at his last known address and shall provide Plaintiff with blank forms for Notice of Change of Address (MC-040) and Application for Waiver of Court Fees and Costs (FW-001).
4. Withdrawing Counsel shall file a proof of service demonstrating compliance with paragraph 3 within 15 days of the date of this order.
5. This action is **dismissed** without prejudice pursuant to section Cal. Code of Civ. Proc. 581(b)(1).
6. No appearance is required at the hearing currently scheduled for July 8, 2026.

13. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This hearing is vacated by stipulation of counsel. No appearance is required at the hearing on July 8, 2026.

14. 9:00 AM CASE NUMBER: C25-01863
CASE NAME: DARON OLIVER VS. SELINA CHEUNG
HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: FEN GUAN, HUAN

TENTATIVE RULING:

This hearing is vacated by stipulation of counsel. No appearance is required at the hearing on July 8, 2026.

15. 9:00 AM CASE NUMBER: C25-03683
CASE NAME: TEMI STEWART VS. GREYSTAR REAL ESTATE PARTNERS, LLC
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: GREYSTAR REAL ESTATE PARTNERS, LLC

TENTATIVE RULING:

This hearing is **vacated**. Plaintiff filed a First Amended Complaint on June 24, 2026. No appearance is required at the hearing on July 8, 2026.

16. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL
FILED BY: BEMAN, STEVE

TENTATIVE RULING:

Summary

Curtis Hoke, who is Counsel for Plaintiff Steve Beman, filed a Motion to be Relieved as Counsel on January 9, 2026. The Motion is **granted** as set forth herein.

Background

The California Paraquat lawsuits allege that Defendants Syngenta and Chevron Phillips Chemical Company knew or should have known that chronic exposure to Paraquat, a toxic herbicide used in agriculture, significantly increases the risk of developing Parkinson's disease, yet failed to adequately warn users, regulators, or the public.

On January 9, 2026, Curtis Hoke, ("Withdrawing Counsel") who is Counsel for one of the Plaintiffs,